

Pradeep Kumar Gupta v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 5 August 2019 · Writ-C No. 24224 of 2019 · **Demand and recovery citation upheld; representations sent to Clause 6.5.**

HEADNOTE

A writ attacking a recovery citation and electricity demand fails where the demand is confined to the period before the alleged permanent disconnection, a prior deposit has already been accounted for, and the disconnection is only temporary, a permanent-disconnection certificate issuing only on clearance of dues. Pending billing representations may be pressed before the Executive Engineer and decided under Clause 6.5 of the U.P. Electricity Supply Code, 2005, expeditiously and preferably within six weeks.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 16 March 2019 for Rs. 8,61,140 plus charges and a demand notice dated 24 January 2019 of U.P. Power Corporation Ltd. He claimed his connection was disconnected on 1 November 2014, incorrect bills continued, his representation was undecided, and Rs. 75,000 deposited by him was unadjusted. The demand of Rs. 8,61,396 ran only up to August 2014, before the alleged permanent disconnection; the deposit receipt was dated 31 March 2013.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

There is no error or illegality in a demand and recovery citation where the demand is for dues up to a date before the alleged permanent disconnection, a prior deposit has already been taken into account, and the disconnection is only temporary, a certificate of permanent disconnection issuing only on clearing dues standing on the disconnection date. Remaining billing representations are to be pressed before the Executive Engineer, who shall decide them in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005, most expeditiously and if possible within six weeks. ¶ 1-2

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ attacking a recovery citation and electricity demand fails where the demand is confined to the period before the alleged permanent disconnection, a prior deposit has already been accounted for, and the disconnection is only temporary, a permanent-disconnection certificate issuing only on clearance of dues.. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S PENDING BILLING REPRESENTATIONS

Left to the Executive Engineer under Clause 6.5, preferably within six weeks. ¶ 1-2